

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/10/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV1901779

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: MIDLAND FUNDING LLC	
vs.	
DEFENDANT: REINER CACACE	

NATURE OF PROCEEDINGS: MOTION – ATTORNEY’S FEES

RULING

Plaintiff Midland Funding filed a Motion to Set Aside Judgment on June 6, 2026.

An Acknowledgement of Satisfaction of Judgment was entered on November 17, 2025. Default Judgment was taken on November 6, 2019.

The alleged Defendant never made an appearance and there was no opposition filed. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.)

Plaintiff’s motion is GRANTED in it’s entirely.

If any party wishes to contest the tentative, the matter will be heard on July 17, 2026, at 1:30 p.m. in this department.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party’s absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/10/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2301658

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: JEAN COYSTON, ET AL

vs.

DEFENDANT: BARBARA BOUCKE

NATURE OF PROCEEDINGS: MOTION – ATTORNEY’S FEES

RULING

The court issued a tentative ruling on February 19, 2026. The tentative invites the Defendant to request a continuance to pursue discovery on the attorney fees claimed by Plaintiff’s counsel, who seeks fees pursuant to Code of Civil Procedure § 2033.420. The matter was called as regularly scheduled in this department on February 20, 2026, and Defendant requested a continuance to pursue discovery on the fee issue. The court also opened the inquiry into the reasonableness of Plaintiff counsel’s requested compensable hourly rate of \$800.00.

The hearing was set for May 26, 2026, with the parties filing supplemental briefing on the fee issue. Plaintiff filed papers on April 17, and Defendant filed an opposition on May 4. The plaintiff’s filing triggered the court clerk to assign a new date for hearing on the fee motion. This was a clerical error.

The court entered an order on Plaintiff’s fee request on June 22, 2026.

The matter is dropped.

Should any party wish with contest the tentative, the matter will be heard on July 17, 2026, at 130 pm in this department.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.